1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 8 - .18 New ship means a shi
p: .1 for which the building contract is placed on or after 1 January 2013; or .2 in the
absence of a building contract, the keel of which is laid or which is at a similar stage
of construction on or after 1 July 2013; or .3 the delivery of which is on or after 1 Ju
ly 2015.

.19 Non-conventional propulsion means a method of propulsion, other than conventional pr
opulsion, including diesel-electric propulsion, turbine propulsion, and hybrid propulsio
n systems.

.20 Passenger ship means a ship which carries more than 12 passengers.

.21 Polar Code means the International Code for Ships Operating in Polar Waters, consist
ing of an introduction, parts I -A and II -A and parts I -B and II-B, as adopted by reso
lutions MSC.385(94) and MEPC.264(68), as may be amended, provided that: .1 amendments to
the environment -related provisions of the - II-B, as adopted by resolutions MSC.385(94)
and MEPC.264(68), as may be amended, provided that: .1 amendments to the environment -re
lated provisions of the introduction and chapter 1 of part II-A of the Polar Code are ad
opted, brought into force and take effect in accordance with the provisions of article 1
6 of the present Convention concerning the amend ment procedures applicable to an append
ix to an annex; and .2 amendments to part II -B of the Polar Code are adopted by the Mar
ine Environment Protection Committee in accordance with its Rules of Procedure.

.22 Refrigerated cargo carrier means a ship designed exclusively for the carriage of ref
rigerated cargoes in holds.

.23 Required annual operational CII is the target value of attained annual operational C
II in accordance with regulations 26 and 28 of this Annex for the specific ship type and
size.

.24 Required EEDI is the maximum value of attained EEDI that is allowed by - operational
CII in accordance with regulations 26 and 28 of this Annex for the specific ship type an
d size.

.24 Required EEDI is the maximum value of attained EEDI that is allowed by regulation 24
of this Annex for the specific ship type and size.

.25 Required EEXI is the maximum value of attained EEXI that is allowed by regulation 25
of this Annex for the specific ship type and size.

.26 Ro-ro cargo ship means a ship designed for the carriage of roll -on-roll-off cargo t
ransportation units.

.27 Ro-ro cargo ship (vehicle carrier) means a multi-deck roll-on-roll-off cargo ship de
signed for the carriage of empty cars and trucks.

.28 Ro-ro passenger ship means a passenger ship with roll -on-roll-off cargo spaces.

RESOLUTION MEPC.328(76) AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INT
ERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY T
HE PROTOCOL OF 1978 RELATING THERETO- 9 - - AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1
997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 19
73, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 9 - .29 Tanker means an oil ta
nker as defined in regulation 1 of Annex I of the present Convention or a chemical tanke
r or an NLS tanker as defined in regulation 1 of Annex II to the present Convention.

Regulation 3 Exceptions and exemptions General 1 Regulations of this Annex shall not app
ly to: .1 any emission necessary for the purpose of securing the safety of a ship or sav
ing life at sea; or .2 any emission resulting from damage to a ship or its equipment: .2
.1 provided that all reasonable precautions have been taken after the occurrence of the
damage or discovery of the emission for the purpose of preventing or minimizing